

Analyzing ToS, EULA & Privacy Policy of Chaldal.com

A Critical Legal Examination



Bangladesh's leading online grocery delivery platform
165 DIT Extension Rd, Dhaka

Grocery Pharmacy Cookups
1-Hr Delivery Egg Club

Accessibility & Transparency of Agreements

- ToS in English only - inaccessible to Bangla-speaking majority
- Agreement by Use - users bound without explicit consent
- No ToS prompt during checkout or app signup
- Changes effective immediately upon posting (§1.7)
- No version history or changelog published
- No simplified summary for non-legal readers
- ToS last updated date not displayed

Compliance with Laws & Regulations

- ICT Act 2006 - ToS as electronic record (§1.4)
- Contract Act 1872 - minors under 18 prohibited (§2.2)
- Sale of Goods Act 1930 - contract on delivery (§9.1)
- Tobacco Control Act 2005 - age verification (§21)
- Bangladesh Bank MFS Guidelines - bKash, Nagad
- Cyber Security Act (CSA) 2023
- CRPA 2009 - Consumer Rights Protection

Real Incident #1

Customer Sayema Khatun received a damaged frying pan.
Requested refund - told item out of stock. Forced to accept site credit instead of original payment refund.

Violation: DCG 2021 - refund must be in original payment form
Source: Dhaka Tribune, 2021

Privacy Compliance

- Cookies mandatory - no opt-out option (§7.1) - violates user autonomy
- Data collected: name, phone, email, address, Facebook login, purchase & browsing history
- Email open-tracking used without separate disclosure
- NID photograph taken at delivery for tobacco orders - no retention/deletion policy (§21.9)
- Third-party sharing for "fraud protection" - no list of third parties disclosed
- No data breach notification policy - complete silence on exposure scenarios
- Chalao Driver app retains personal & location data for 3 years post-termination

Industry Comparison

Criteria	Amazon	Daraz BD	Chaldal
Refund Method	Auto original payment	Original payment	Forced site credit first
Refund Timeline	3-5 days	Per DCG 2021	7 days (frequently breached)
Dispute Resolution	Formal arbitration	DNCRP referenced	Internal hotline only
Language of ToS	Local language	Bengali available	English only
Cookie Consent	Cookie manager	Cookie manager	Mandatory, no opt-out
Breach Notification	Policy in place	Policy in place	Not mentioned
App EULA	Separate EULA	Separate EULA	Buried in website ToS

Intellectual Property & User Rights

- No explicit user license grant - potential conflict with Copyright Act 2000
- No standalone EULA for Android/iOS - terms buried in website ToS §17
- Discount codes revocable at any time without notice (§8.3-8.4) - CRPA 2009 concern
- Promotions can be withdrawn/amended/voided without prior notice (§8.4)
- Egg Club points: non-transferable, non-cashable (§19.3)
- Software updates automatically without previous notification (§17.4)

Insights from Legal Consultation

- No arbitration clause - all disputes handled internally via hotline 16710 only.
- ToS modifications effective "immediately upon posting" - no email, SMS, or push notification required.
- Refunds defaulted to Chaldal Balance - return to original payment only on explicit user request (§13.2).
- Product descriptions not guaranteed accurate - sole remedy is return in unused condition (§10.1).

Termination, Transparency & Accessibility

- Account deletion only via mobile app - not website (§18)
- 30-day data retention before actual erasure (§18.4)
- No account appeal process described
- Service downtime - users waive all resulting loss claims (§4.4)
- Multiple accounts prohibited - automated detection, no prior notice (§4.5)

Resources Used



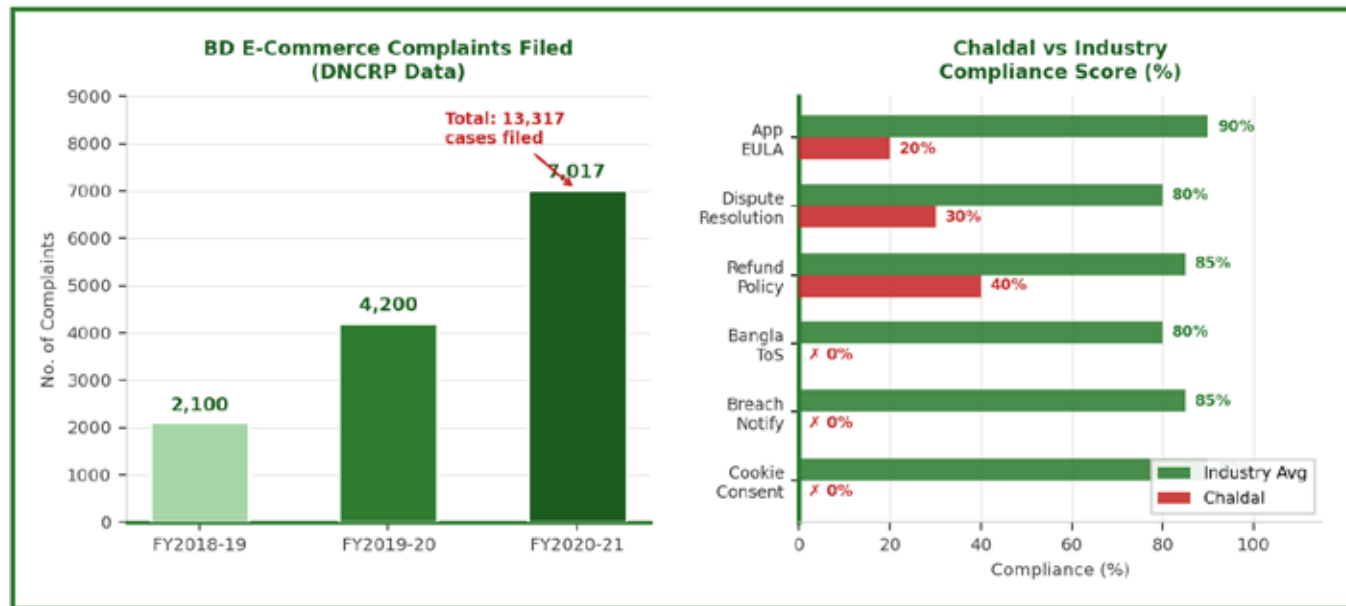
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Graph 1: BD E-Commerce Complaints bar chart (DNCRP data, FY2018-21), showing the growth to 13,317 total cases

Graph 2: Chaldal vs Industry compliance horizontal bar chart across 6 criteria, with red showing Chaldal's gaps



Data Sources: DNCRP Official Complaint Data, FY2018-2021, Bangladesh Chaldal.com Terms of Use & Privacy Policy Digital Commerce Operational Guidelines 2021, Ministry of Commerce, Bangladesh.